
FINAL TECHNICAL PROPOSAL

A-29 Super Tucano Resident Instructor Support Program

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EXECUTIVE SUMMARY

StrategicDefense Security Systems Ltd. ("Strategic Defense") proposes to recruit, deploy, administer and support a resident cadre of qualified A-29 Super Tucano instructors at 407 Air Combat Training Group ("407 ACTG"), NAF Base Kainji, Niger State, for a period of twelve months, in order to augment the instructional capacity of the Nigerian Air Force ("NAF").

The instructors will deliver academic, ground-school, simulator and airborne instruction, together with briefing, debriefing, grading, checking and assessment duties, against the NAF-approved Initial Qualification Training ("IQT") and Mission Qualification Training ("MQT") syllabi. They will be tasked and supervised entirely through the NAF training chain and will operate in substantially the same instructional manner as authorized NAF instructors.

Strategic Defense will not place a resident program manager, chief instructor or supervisory structure at the deployment base. Instructor tasking, supervision and standardization are matters for NAF. Strategic Defense will provide recruitment, mobilization, international and in-country travel, accommodation and meal costs, administration, welfare, contractual support, replacement and instructor insurance, and will maintain a designated company focal point for contractual and administrative coordination.

NAF will retain command, tasking authority, training standards, qualification and certification authority, and responsibility for all operational resources, including aircraft, airworthiness, flight release, simulators, fuel, weapons, ammunition, airspace, ranges and aircrew life-support equipment.

The engagement provides instructional capacity. It does not guarantee a number of trainees, course completions, sorties, qualifications or certifications, and Strategic Defense does not accept risk for training output governed by NAF-controlled resources or tasking.

Mobilization is conditional on the matters set out at Section 25, including agreement of the liability allocation at Section 19.

This Final Technical Proposal contains no prices, fees, instructor numbers or commercial conditions. Those are addressed in the Final Commercial Proposal and implementation contract.

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1. PURPOSE AND STATUS

StrategicDefense Security Systems Ltd. ("Strategic Defense") submits this Final Technical Proposal for the provision of resident A-29 Super Tucano instructors to support the Nigerian Air Force ("NAF") at 407 Air Combat Training Group, NAF Base Kainji, Niger State.

This proposal defines the instructor-support model, scope of instructional services, deployment arrangements, instructor requirements, working conditions, responsibilities, operational dependencies, performance measures, conditions precedent and technical conditions applicable to the engagement.

The proposed instructors will augment the NAF's existing A-29 instructional capacity and will deliver training, checking and assessment activities under NAF direction and in accordance with NAF-approved IQT and MQT syllabi.

This Final Technical Proposal does not include prices, instructor numbers, instructor remuneration or detailed commercial conditions. Those matters will be addressed in the Final Commercial Proposal and implementation contract.

2. ABOUT STRATEGIC DEFENSE

Strategic Defense is a defense services company registered in Abuja, Federal Capital Territory, Nigeria, providing specialist military aviation training support, instructor provision and program administration.

The company brings direct operational, instructional and training-management experience on the A-29 Super Tucano.

Its leadership includes a qualified A-29 Super Tucano instructor pilot, retired from military service, with extensive flying and instructional experience on type and operational combat experience on the aircraft. Its leadership also includes a retired General Officer with senior-level experience in the management, supervision and governance of military aviation training, including IQT and MQT programs at squadron, group and headquarters level.

The company's operating base in Abuja provides direct proximity to the deployment location and to the relevant Nigerian regulatory, immigration and defense authorities, supporting mobilization, in-country administration and continuing instructor support throughout the engagement.

This combined experience will support the recruitment, screening, deployment, administration and continuing support of appropriately qualified A-29 instructors for the proposed engagement.

3. PROGRAM OBJECTIVE

The objective of the program is to augment the NAF's existing A-29 instructional capacity through the deployment of an agreed cadre of qualified resident A-29 instructors for a period of twelve months.

The instructors will support the delivery of the NAF's existing IQT and MQT programs by performing the academic, ground-based, simulator, airborne, checking and assessment duties assigned to them by the designated NAF training authority.

The instructors will operate within the NAF training system in substantially the same instructional manner as authorized NAF instructors. They may support different trainees and different elements or

phases of the NAF-approved IQT and MQT syllabi according to NAF requirements. An instructor will not necessarily be assigned to one trainee throughout that trainee's complete qualification pathway.

The program is intended to provide the NAF with additional instructional capacity. It does not transfer control of NAF training programs, qualification standards or certification authority to Strategic Defense.

4. RESIDENT INSTRUCTOR SUPPORT MODEL

Strategic Defense will recruit, deploy, administer and support an agreed cadre of resident A-29 instructors. The designated NAF training authority will control and supervise their instructional tasking within the scope defined in this proposal.

The instructors will be integrated directly into the NAF training chain at 407 ACTG. Their daily tasking, supervision, standardization and instructional oversight will be exercised by the designated NAF training authority under NAF orders, procedures and standards.

Strategic Defense will not deploy a resident program manager, chief instructor or supervisory structure to the deployment base, and does not propose a parallel company chain of command, standardization function or safety management system at 407 ACTG. Instructors will work within the NAF safety, standardization and flight-operations system.

Strategic Defense will designate a company focal point, based in Abuja, for contractual coordination, administration, welfare and instructor support. That focal point will not task, supervise or direct instructional activity.

Strategic Defense will also provide training advisory support to the designated NAF training authority in connection with the delivery of the A-29 training program, at no additional cost to NAF.

The instructors will comply with applicable NAF orders, procedures and security requirements but will remain engaged and supported by Strategic Defense. They will not become NAF employees and will not acquire command or disciplinary authority over NAF personnel.

5. SCOPE OF INSTRUCTOR SERVICES

According to their qualifications, currency and NAF authorizations, the instructors may be assigned to:

- ▶ Deliver academic and ground-school instruction within the NAF-approved IQT and MQT syllabi.
- ▶ Conduct simulator instruction.
- ▶ Conduct airborne instruction.
- ▶ Conduct pre-flight briefings and post-flight debriefings.
- ▶ Grade trainee performance following assigned training events.
- ▶ Complete the applicable NAF training forms and records.
- ▶ Identify trainee deficiencies and recommend remedial or additional training.
- ▶ Conduct progress checks, stage checks and final assessments when specifically tasked and appropriately qualified.

- ▶ Participate in NAF-directed instructor coordination and standardization activities related to assigned IQT and MQT duties.

All instructional duties will be performed using the applicable NAF-approved syllabi, lesson objectives, operating procedures, standards, grading systems and documentation.

6. DEPLOYMENT TERM, LOCATION AND INSTRUCTOR COMPLEMENT

■ 6.1 Deployment Location

The instructors will be deployed to 407 Air Combat Training Group, NAF Base Kainji, Niger State, as their single deployment base. Routine reassignment to another NAF base or facility is not included.

The instructors may be assigned to syllabus sorties which depart from and return to the deployment base but involve landing at, and remaining overnight at, another NAF base or airfield within Nigeria, including cross-country and navigation sorties. Such sorties form part of normal training activity and do not constitute reassignment or relocation of the instructor or of the training.

An instructor will not be required to remain away from the deployment base for more than three (3) consecutive nights in connection with any such sortie without the prior agreement of Strategic Defense.

NAF will provide accommodation and messing for the instructor at the away base or airfield for the duration of any such night stop.

■ 6.2 Instructor Complement

The number of instructors forming the resident cadre, and the distribution of that cadre between instructional roles, will be confirmed by NAF and stated in the Final Commercial Proposal and implementation contract before mobilization.

NAF may request additional instructors during the contract period. Their provision will be subject to instructor availability and a written commercial amendment agreed between Strategic Defense and NAF.

■ 6.3 Deployment Term

Each instructor will be deployed for twelve months beginning on arrival at the deployment base on the commencement date agreed between Strategic Defense and NAF. Medical checks, currency restoration, orientation, standardization and any simulator-instructor training required after arrival will take place within that period.

An instructor deployed as a replacement under Section 17 will be engaged for the balance of the term applicable to that position, as extended under Section 17, rather than for a further twelve months.

The deployment may be extended by mutual written agreement. Any extension will be subject to instructor availability and the additional technical and commercial conditions agreed by the parties. Delays caused by NAF-controlled requirements or resources will not automatically extend the original twelve-month period.

■ 6.4 Pre-Mobilization Coordination

Before mobilization, Strategic Defense and NAF will coordinate the instructor complement, submission and review of instructor documentation, arrival arrangements, support requirements, applicable pre-deployment authorizations and the agreed commencement date.

Mobilization will begin only after satisfaction of the conditions precedent at Section 25.

■ 6.5 Suspension of A-29 Airborne Operations

Where all A-29 airborne operations at the deployment base are suspended, whether by mandatory continued airworthiness information issued by the type certificate holder or by the responsible airworthiness authority, by a fleet operational suspension imposed by NAF, or by any similar measure, Strategic Defense and NAF will meet within fourteen (14) days of the earlier of:

- ▶ The suspension having continued for a period of forty-five (45) consecutive days.
- ▶ Written confirmation from the type certificate holder, the responsible airworthiness authority or NAF that the suspension is expected to continue for more than forty-five (45) days.

At that meeting the parties will agree arrangements that are equitable to both parties for the period of the suspension and for the resumption of the program. Until such arrangements are agreed in writing, the engagement continues without change and the instructors will continue to deliver the academic, ground school, simulator, briefing, assessment and training record duties described at Section 5.

7. INSTRUCTOR ELIGIBILITY AND NAF APPROVAL

■ 7.1 Qualification Requirements

Each proposed instructor will hold, or have previously held, a recognized qualification as an A-29 Super Tucano instructor pilot.

An instructor may be non-current or retired from active military service when proposed, provided that the instructor remains capable of satisfying the applicable medical, currency, standardization and authorization requirements before performing airborne instructional duties.

■ 7.2 Screening and Submission

Strategic Defense will recruit suitably qualified instructors, verify their experience and supporting documentation, conduct background screening, and submit each proposed instructor's curriculum vitae and evidence of qualifications separately to NAF.

■ 7.3 NAF Acceptance

NAF will review each proposed instructor's curriculum vitae, experience and instructor qualifications and will retain final authority to accept or reject the proposed instructor.

Acceptance of an instructor's curriculum vitae does not authorize airborne or simulator instruction. The instructor must first complete the applicable NAF medical, currency, standardization and authorization requirements.

8. MEDICAL CLEARANCE, CURRENCY AND NAF STANDARDIZATION

■ 8.1 Medical Standards and Clearance

Each instructor will hold, before deployment, a current Class 1 aeromedical certificate issued by a recognized civil aviation authority. For this purpose a recognized certificate means an FAA First Class medical certificate, an EASA Class 1 medical certificate, or a Class 1 medical certificate issued under ICAO Annex 1 by the civil aviation authority of the instructor's country of nationality or residence. The instructor will maintain that certificate in force for the duration of the deployment.

Strategic Defense will arrange and bear the cost of a pre-deployment medical examination and of the vaccinations required for entry to Nigeria, in each case completed before the instructor travels.

NAF will conduct any medical examination required under its own regulations and will issue the medical clearance necessary for the instructor's assigned duties. NAF will bear the cost of that examination and will conduct it against the standard applicable to NAF aircrew of comparable role and age, taking into account the certificate held by the instructor.

An instructor will not conduct airborne instruction until the required NAF medical clearance has been issued.

If an instructor is assessed as medically unfit at the NAF examination, Strategic Defense will provide a replacement in accordance with Section 17.

■ 8.2 A-29 Currency

NAF will review each instructor's A-29 currency following arrival. Where currency restoration is required, NAF will provide the aircraft, NAF instructional or checking personnel, fuel, flight hours, facilities and other operational resources required to restore and validate that currency.

The instructor will not conduct airborne instruction until NAF has confirmed the required currency and issued the applicable authorization.

The twelve-month deployment term for each instructor runs from arrival at the deployment base and is not extended by the time taken to complete medical clearance, currency restoration, orientation, standardization or the issue of the applicable NAF authorizations. The instructor may perform authorized non-flying duties during that period.

Routine instructional flying is expected to maintain instructor currency during the deployment. NAF will provide the flying opportunities, checks and operational resources required to maintain that currency.

If an instructor's currency lapses because the required NAF-controlled resources or flying opportunities are unavailable, the instructor may continue performing authorized non-flying duties until NAF restores and validates the required currency. Such a lapse will not constitute non-performance by Strategic Defense.

■ 8.3 NAF Orientation and Standardization

Before beginning assigned instructional duties, each instructor will complete the NAF-provided orientation and standardization required for the role. NAF will provide the applicable programs, personnel, materials, facilities and operational resources.

The orientation and standardization may cover NAF operating orders, flight procedures, IQT and MQT syllabi, grading practices, training documentation, flight-safety and emergency procedures, local airspace and range procedures, base security and reporting requirements.

■ 8.4 Simulator-Instructor Authorization

Where simulator instruction is required and an instructor does not already hold the required NAF-recognized qualification or authorization, NAF may train, evaluate and authorize that instructor under its applicable simulator-instructor program.

NAF will provide the program, instructional personnel, simulation equipment, facilities and other resources required for that qualification. After NAF qualification and authorization, the instructor may conduct simulator instruction within the applicable NAF-approved IQT and MQT syllabi.

9. NAF TASKING AND WORKING PATTERN

The designated NAF training authority will determine the instructors' daily utilization within the contracted scope, including the trainees, lessons, simulator events, airborne sorties, checks, assessments and related training duties assigned to them.

Instructors will normally work five days per week according to the NAF training schedule. No fixed daily-hour commitment is established. The five working days need not always fall between Monday and Friday. NAF may schedule weekend duty when required, provided that equivalent rest days are assigned and the instructor normally works no more than five days per week.

Airborne duties will comply with the applicable NAF flight-time, duty-time and crew-rest regulations. These limitations will apply irrespective of training pressure, aircraft availability or schedule delays.

Each instructor will receive twenty (20) working days of leave during the twelve-month deployment. Leave will be scheduled in coordination with NAF to avoid unnecessary disruption to training activities.

Instructors will normally observe NAF-recognized public holidays and official stand-down days. Any exceptional duty on those days will be coordinated with the responsible NAF authority and remain subject to applicable duty and rest limitations.

When flying is unavailable because of weather, aircraft serviceability, operational requirements or other constraints, NAF may assign the instructors to authorized ground-school, simulator, briefing, assessment or training-record duties within the approved IQT and MQT syllabi.

10. TRAINING DELIVERY AND NAF-PROVIDED RESOURCES

All training, checking and assessment will be conducted in accordance with the applicable NAF-approved IQT and MQT syllabi, procedures, standards, grading systems and documentation. Instructors will deliver only the syllabus elements and training events assigned by the designated NAF training authority.

No instructor may independently modify, replace or deviate from an NAF-approved syllabus, standard or procedure. Any required interpretation or clarification will be referred to the responsible NAF training authority.

NAF will provide the approved instructional materials, classrooms, training aids, mission-planning resources and other facilities required for assigned academic and ground-school instruction.

NAF will provide, fit and maintain the personal flying and aircrew life-support equipment required for airborne duties, including flying helmet, oxygen mask, anti-g garment where applicable, flying clothing and gloves, survival vest and survival equipment, life preserver, and night-vision devices where the assigned syllabus requires them. Fitting will be completed following arrival and before the commencement of airborne duties.

NAF will retain responsibility for the serviceability, inspection, maintenance, periodic testing and replacement of that equipment in accordance with its life-support procedures. No instructor will be required to conduct airborne duties using personal flying or life-support equipment that has not been properly fitted, tested and declared serviceable under those procedures.

Simulator instruction may be conducted when it forms part of an NAF-approved syllabus, a suitable NAF training device is available, and the instructor holds the required NAF authorization. NAF will retain responsibility for the availability, serviceability, suitability, maintenance and authorization of its simulator or training device.

Strategic Defense will not be responsible for procuring, installing, upgrading, certifying, operating or maintaining simulation equipment under this engagement.

11. AIRBORNE INSTRUCTION AND FLIGHT-SAFETY AUTHORITY

An instructor may conduct airborne instruction only after NAF acceptance, medical clearance, confirmation or restoration of A-29 currency, completion of the required NAF standardization, issuance of the necessary NAF flight authorizations, and satisfaction of applicable regulatory or third-party requirements.

During an airborne instructional, checking or assessment sortie, the authorized A-29 instructor will act as pilot in command and will exercise the corresponding authority and responsibility for the safe conduct of the flight in accordance with NAF regulations, operating procedures and the authorized training envelope.

The instructor may delay, discontinue or terminate a training sortie when, in the instructor's professional judgment, continuing would compromise flight safety or exceed an applicable limitation or authorization.

An instructor may decline any sortie which, in the instructor's professional judgment, is operational rather than instructional in character, falls outside the authorized training envelope, or falls outside the instructor's qualifications or authorizations. The exercise of that judgment will be referred immediately to the designated NAF and Strategic Defense focal points and will not constitute non-performance by the instructor or by Strategic Defense.

NAF will retain responsibility for aircraft maintenance, configuration, airworthiness, serviceability, flight release, fuel, ground support, operational and weather information, airspace, ranges, weapons, ammunition and aircrew life-support equipment.

No instructor will be required to accept or operate an aircraft that has not been properly maintained, released and declared serviceable under applicable NAF procedures.

12. LIVE-FIRE AND WEAPONS-EMPLOYMENT TRAINING

■ 12.1 Basis for Live-Fire Instruction

Instructors may conduct live-fire and weapons-employment training when the activity forms part of an NAF-approved MQT syllabus, is assigned and authorized by NAF, falls within the instructor's qualifications and authorizations, and is conducted using an appropriately configured aircraft on an approved range.

■ 12.2 Boundaries of Live-Fire Instruction

Live-fire and weapons-employment training conducted by the instructors will be limited to the approved range complex and to inert, practice or designated range targets.

For the avoidance of doubt, the instructors will not be tasked with and will not conduct:

- ▶ Employment of weapons against any live target or against personnel, whether within or outside an approved range complex.
- ▶ Employment of weapons against any objective outside an approved range complex.
- ▶ Armed overwatch, escort, reconnaissance, show-of-force or any similar tasking.
- ▶ Transit or holding with live weapons outside the approved range complex, other than as required for authorized recovery, jettison or emergency procedures.
- ▶ Any sortie forming part of an operational, alert or combat tasking.

These sorties will remain training activities and will not constitute operational, alert or combat sorties.

■ 12.3 NAF Responsibilities

NAF will provide and retain responsibility for the weapons, ammunition, weapons preparation and loading, range and range-control services, weapons-release and range authorizations, explosive-safety requirements, aircraft configuration and weapons-system serviceability.

■ 12.4 Instructor Authority

The instructor, acting as pilot in command, may discontinue or terminate a live-fire training event when safety requirements, range conditions, aircraft status, trainee performance or another relevant circumstance makes continuation unsafe or unauthorized.

13. ASSESSMENT, GRADING AND CERTIFICATION

The instructors will conduct grading, checking and assessment activities assigned by NAF in accordance with the applicable NAF-approved IQT and MQT syllabi, procedures, standards and documentation.

The instructors will record and submit their findings, feedback and recommendations through the applicable NAF process.

NAF will retain exclusive authority over trainee progression, remedial-training decisions, qualification and certification. Neither Strategic Defense nor the individual instructors will issue NAF trainee qualifications or certificates.

14. TRAINING RECORDS AND MONTHLY SERVICE REPORTING

The instructors will complete trainee grades, sortie reports, assessment records and other required training documentation directly through the applicable NAF forms and record-keeping systems.

All trainee records, evaluation results and qualification information will remain under NAF ownership and control. Strategic Defense will not maintain a separate official trainee-record system, and will not hold, copy or transfer trainee personal data outside the NAF system.

Strategic Defense will maintain only the instructor deployment, attendance, availability and activity records required for contract administration.

At the end of each month, the designated NAF authority will review and confirm an attendance and activity record for each instructor in the format at Annex A. The record will identify instructor availability, assigned and completed activities, authorized leave and rest days, holidays and stand-down days, approved absences, and periods during which NAF-controlled resources prevented utilization.

The confirmed monthly record will provide the basis for technical acceptance of the instructor services for that month, in accordance with Section 18.

15. PROGRAM COORDINATION AND RESPONSIBILITIES

■ 15.1 Coordination

Routine instructional matters will be addressed through the applicable NAF training chain. Administrative, welfare, contractual or personnel matters concerning the instructors will be referred to the Strategic Defense focal point.

Any concern regarding an instructor's safety, security, conduct, medical fitness, authorization or instructional performance will be communicated promptly between the designated NAF and Strategic Defense focal points.

■ 15.2 Strategic Defense Responsibilities

Strategic Defense will be responsible for:

- ▶ Recruiting suitably qualified A-29 Super Tucano instructors for the agreed cadre.
- ▶ Verifying instructor experience, instructor qualifications and supporting documentation.
- ▶ Conducting background and sanctions screening of each proposed instructor.
- ▶ Submitting each proposed instructor's curriculum vitae and evidence of qualifications to NAF for review and acceptance.
- ▶ Maintaining the agreed instructor complement throughout the deployment term.

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- ▶ Providing replacement instructors where required, and extending the engagement of any unfilled position at no additional cost to NAF in accordance with Section 17.
 - ▶ Obtaining the instructors' Nigerian entry visas, work permits and other immigration and employment documentation.
 - ▶ Identifying each instructor's nationality and pursuing the export-control, security-assistance, end-use and third-party training authorizations for which Strategic Defense is the responsible party.
 - ▶ Arranging and bearing the cost of the pre-deployment medical examination of each instructor.
 - ▶ Arranging and bearing the cost of the vaccinations required for entry to Nigeria.
 - ▶ Conducting pre-deployment briefings, including on conduct, compliance and the anti-bribery policy.
 - ▶ Arranging and bearing the cost of international travel of the instructors to and from Nigeria for initial deployment, approved leave and final redeployment.
 - ▶ Bearing the cost of transportation between the deployment base and Nnamdi Azikiwe International Airport, Abuja, for initial deployment, final redeployment and approved leave travel.
 - ▶ Bearing the cost of transportation between the deployment base and Abuja for approved instructor travel during the deployment.
 - ▶ Bearing the cost of instructor accommodation at the deployment base and paying the applicable charges to NAF.
 - ▶ Bearing the cost of instructor meals and messing at the deployment base and paying the applicable charges to NAF.
 - ▶ Arranging and paying for alternative accommodation and meals where no suitable on-base arrangement is available.
 - ▶ Providing instructor welfare and continuing in-country support throughout the deployment.
 - ▶ Maintaining international health insurance and emergency dental cover for each deployed instructor.
 - ▶ Maintaining medical evacuation, repatriation and repatriation-of-remains cover for each deployed instructor.
 - ▶ Maintaining personal accident and life cover for each deployed instructor, extending to authorized flying duties and to live-fire and weapons-employment training, and including war, terrorism and political violence extension.
 - ▶ Designating a company focal point in Abuja for contractual coordination, administration, welfare and instructor support.
 - ▶ Maintaining the instructor deployment, attendance, availability and activity records required for contract administration.
 - ▶ Submitting the monthly instructor attendance and activity record to the designated NAF authority in accordance with Section 18.
 - ▶ Maintaining and applying the anti-bribery and anti-corruption policy applicable to this engagement.
 - ▶ Withdrawing any instructor found to be in breach of the conduct and compliance requirements, and providing a replacement.

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- ▶ Handling NAF information and materials in accordance with Section 23 and the applicable mutual non-disclosure agreement.

■ 15.3 NAF Responsibilities

NAF will be responsible for:

- ▶ Approving instructors and designating the responsible training authority and focal point.
- ▶ Assigning, supervising and standardizing instructional duties.
- ▶ Providing the applicable syllabi, procedures, standards, documentation and trainee-record systems.
- ▶ Providing medical examination and clearance, currency restoration and maintenance, standardization, simulator-instructor qualification where required, and the applicable NAF authorizations.
- ▶ Providing the aircraft, simulator, fuel, weapons, ammunition, airspace, ranges, facilities, equipment, maintenance, ground support and other resources required for assigned training.
- ▶ Providing, fitting and maintaining the personal flying and aircrew life-support equipment required for airborne duties.
- ▶ Retaining trainee qualification and certification authority.
- ▶ Providing base access, base security and routine transportation on and around the deployment base.
- ▶ Allocating on-base accommodation and authorizing access to on-base messing facilities.
- ▶ Providing accommodation and messing at an away base or airfield during any night stop under Section 6.1.
- ▶ Facilitating the transportation described at Section 16.3.
- ▶ Retaining aircraft hull risk and maintaining third-party liability cover in respect of the operation of its aircraft.
- ▶ Providing the flight-safety and flight-operations governance framework within which the instructors will operate.

16. ACCOMMODATION, MEALS, TRANSPORTATION AND SECURITY

Strategic Defense will bear the cost of the accommodation, meals and transportation described in this Section, and will pay the applicable charges to NAF where those charges are raised by NAF.

■ 16.1 Accommodation and Meals

NAF will use reasonable efforts to allocate suitable on-base accommodation for the deployed instructors and authorize access to the applicable on-base messing facilities.

Accommodation allocated under this Section will be single occupancy, with power, water, sanitation, air conditioning, internet access where available on base, and access to laundry facilities.

If suitable on-base accommodation or messing is unavailable, NAF will first use reasonable efforts to identify another suitable on-base arrangement. If no suitable on-base solution is available, Strategic Defense will arrange and pay for alternative accommodation and meals, subject to applicable NAF security requirements. Any amount otherwise payable by Strategic Defense to NAF for accommodation or messing that was not provided will be deducted or credited accordingly.

■ 16.2 Transportation and Security at the Deployment Base

NAF will provide the instructors' routine transportation on and around the deployment base.

NAF will provide normal base access, base security and any authorization required for instructor movements connected with assigned duties. Instructors will comply with applicable NAF security procedures and movement restrictions.

■ 16.3 Travel Between Kainji and Abuja, and International Travel

NAF will facilitate weekly round-trip transportation between NAF Base Kainji and Abuja, normally using available NAF military flights. Travel timing will remain subject to NAF aircraft availability and operational priorities.

NAF will also facilitate transportation between NAF Base Kainji and Nnamdi Azikiwe International Airport, Abuja, for initial deployment, final redeployment and approved instructor leave travel.

Strategic Defense will arrange and bear the cost of the instructors' international travel to and from Nigeria for initial deployment, approved leave and final redeployment.

Travel under this Section will be coordinated in advance with the responsible NAF authority and remain subject to NAF operational requirements and transportation availability.

17. INSTRUCTOR AVAILABILITY, REMOVAL AND REPLACEMENT

Strategic Defense will use reasonable efforts to maintain the agreed instructor complement throughout the deployment term.

If an instructor becomes medically unfit, resigns or is otherwise unable to continue the engagement, Strategic Defense will propose a suitably qualified replacement candidate to NAF, and will deploy the accepted replacement, as soon as reasonably practicable. No fixed replacement period is established, because replacement timing depends on the availability of suitably qualified A-29 instructors and on completion of the required NAF acceptance, medical, currency, standardization, immigration and other authorizations.

NAF may request the removal of an instructor for documented reasons concerning safety, security, professional conduct, medical fitness, loss of required authorization or inadequate instructional performance. Strategic Defense will review the request promptly and, where removal is justified, will provide a replacement on the same basis.

Any replacement will be subject to the same NAF review, acceptance, medical, currency, standardization and authorization requirements as the original instructor.

Where a position within the agreed cadre is unfilled for any period, the engagement of that position will be extended beyond the end of the contract term by an equivalent period, at no additional cost to NAF, so that NAF receives twelve months of instructor service in respect of each position within the agreed cadre.

For this purpose a position is unfilled only where no accepted instructor is engaged and deployed in it. Authorized leave under Section 9, rest days, NAF public holidays and stand-down days, and periods during which the instructor is placed on duties not including flying or is assessed as medically unfit, do not render a position unfilled and give rise to no extension.

18. PERFORMANCE AND ACCEPTANCE FRAMEWORK

■ 18.1 Basis of Performance Assessment

Strategic Defense's performance will be assessed against the matters within its control, namely the deployment and availability of the agreed instructor cadre, the professional delivery of instructional duties assigned by NAF, compliance with applicable requirements, completion of required records, and timely administration and support of the instructors.

■ 18.2 Performance Measures

The following measures will apply:

Measure	Standard
Instructor availability for duty, excluding authorized leave, rest days, NAF public holidays and stand-down days, periods of NAF-caused unavailability, and any period during which the instructor is assessed by the NAF flight surgeon or a medical officer as medically unfit for duty	In accordance with Section 9
Completion of assigned NAF training records and grading documentation	Within the period required by NAF procedure
Submission of the monthly attendance and activity record	Within [five (5)] working days of month end
Delivery of twelve months of instructor service in respect of each position within the agreed cadre	By extension of the engagement of that position under Section 17

■ 18.3 Matters Outside Strategic Defense's Performance

The engagement does not guarantee a fixed number of trainees, IQT or MQT course completions, sorties, training events, qualifications or certifications during the twelve-month period.

Reduced utilization or training output resulting from NAF tasking, trainee availability, aircraft serviceability, fuel, ammunition, simulator availability, airspace, ranges, weather, operational priorities or other NAF-controlled resources or circumstances will not constitute non-performance by Strategic Defense.

■ 18.4 Monthly Technical Acceptance

Monthly technical acceptance will be based on the attendance and activity records confirmed by the designated NAF authority under Section 14.

Strategic Defense will submit the monthly record within [five (5)] working days of the end of each month. The designated NAF authority will confirm the record, or notify Strategic Defense in writing of any specific item disputed and the reason for the dispute, within [ten (10)] working days of receipt.

If NAF neither confirms the record nor notifies a written dispute within that period, the record will be treated as confirmed and technical acceptance for that month will be deemed to have been given.

Where NAF disputes a specific item, the remainder of the record will be treated as confirmed and technical acceptance will be deemed given in respect of the undisputed items. The parties will resolve the disputed item promptly through the designated focal points.

19. SAFETY, INSURANCE AND LIABILITY

■ 19.1 Safety Compliance

Instructors will comply with applicable NAF flight-safety, ground-safety, range-safety, emergency and reporting requirements, and will operate within the NAF flight-safety and flight-operations governance framework.

■ 19.2 Allocation of Risk

NAF will retain responsibility for its aircraft, airworthiness, maintenance, flight release, weapons, ammunition, ranges, aircrew life-support equipment and other NAF-controlled operational risks.

As operator of the aircraft, NAF will retain aircraft hull risk on its own account, and will maintain third-party liability cover in respect of the operation of its aircraft in an amount not less than [USD _____] per occurrence.

NAF will waive, and will procure that its insurers waive, any right of subrogation or recourse against Strategic Defense and against the individual instructors in respect of aircraft hull loss or damage and third-party liability arising from the operation of NAF aircraft, other than where the loss arises from the wilful misconduct or gross negligence of an instructor.

The personal liability of an instructor in respect of the performance of assigned duties under this engagement will be limited to loss arising from that instructor's wilful misconduct or gross negligence.

■ 19.3 Strategic Defense Coverage

Strategic Defense will maintain, for each deployed instructor, on a 24-hour basis, on and off duty, throughout Nigeria and during international transit to and from the instructor's home country, international health insurance, emergency dental cover, medical evacuation and repatriation cover, personal accident and life cover, and repatriation of remains.

That cover will extend to all flying aboard NAF aircraft undertaken in connection with the engagement, in whatever capacity the instructor occupies, including as pilot in command, as instructor, as the recipient

of instruction, checking or assessment, and as crew or passenger, and to live-fire and weapons-employment training conducted under Section 12, and will include war, terrorism and political violence extension.

Death, injury or disability of an instructor arising from the performance of authorized duties under this engagement will be addressed through the cover maintained by Strategic Defense. NAF will not be required to indemnify Strategic Defense or the instructor in respect of it.

■ 19.4 Condition Precedent

Agreement of the allocation at Section 19.2, and confirmation of the insurance or indemnity instruments giving effect to it, is a condition precedent to mobilization under Section 25.

No instructor will be deployed, and no airborne or live-fire activity will be undertaken, before that condition has been satisfied.

20. ACCIDENT AND INCIDENT INVESTIGATION AND LEGAL STATUS OF INSTRUCTORS

■ 20.1 Cooperation with Investigation

Instructors will report hazards, incidents and accidents through the applicable NAF reporting procedures and will cooperate fully with any NAF flight-safety investigation, board of inquiry or accident investigation.

■ 20.2 Representation and Support

Where an instructor is required to participate in a board of inquiry, investigation or other proceeding arising from an accident, incident or the performance of assigned duties, NAF will permit:

- ▶ Attendance by a representative of Strategic Defense.
- ▶ Access by the instructor to independent legal representation at the instructor's or Strategic Defense's cost.
- ▶ Provision to the instructor of interpretation and of copies of relevant documents in English.

■ 20.3 Use of Statements

Statements given by an instructor for flight-safety purposes will be used for flight-safety purposes and will not be used as the basis for disciplinary or punitive action, in accordance with applicable NAF flight-safety policy.

■ 20.4 Status and Movement

The instructors are civilian contractors and are not subject to NAF command or disciplinary authority. Any matter arising from an accident, incident or the performance of assigned duties will be addressed through the designated NAF and Strategic Defense focal points.

NAF will not withhold an instructor's passport, travel documents or exit clearance, and will not restrict an instructor's departure from Nigeria, except pursuant to a formal legal process conducted in accordance with Nigerian law and notified promptly to Strategic Defense.

■ 20.5 Weapons

The instructors will not be armed and will not carry personal weapons on or off base, other than aircraft weapons systems employed in the course of authorized live-fire training under Section 12.

21. REGULATORY AND OTHER AUTHORIZATIONS

Strategic Defense will obtain and bear responsibility for the instructors' Nigerian entry visas, work permits and other immigration or employment documentation applicable to their engagement.

NAF will facilitate the military, security, base-access, platform, instructor and flight authorizations under its control, including any required recognition or validation of instructor qualifications.

Deployment and performance of affected duties will remain conditional on satisfaction of any applicable export-control, ITAR, security-assistance, end-use or third-party training authorization associated with an instructor's nationality or with training on the A-29 platform.

Strategic Defense will identify, at the point at which each instructor is proposed, the instructor's nationality and any authorization reasonably expected to be required, and will apply for and pursue the authorizations for which it is the responsible party.

The parties will jointly determine whether any concurrence, consent or authorization of a foreign government or original equipment manufacturer is required in connection with the delivery of A-29 instruction by contracted third-country personnel, including under the terms applicable to the acquisition of the aircraft. NAF will support and, where it is the responsible party, obtain any such concurrence.

Neither Strategic Defense nor an instructor will be required to begin an activity for which a required authorization has not been obtained, and no such delay will constitute non-performance by Strategic Defense.

22. CONDUCT, COMPLIANCE AND ANTI-BRIBERY

Strategic Defense and its instructors will comply with the laws of the Federal Republic of Nigeria, with applicable NAF orders and base regulations, and with local customs and cultural requirements at the deployment location.

Strategic Defense maintains and applies a policy prohibiting bribery, corruption, facilitation payments, and the offering or acceptance of any improper advantage in connection with this engagement. Instructors will be briefed on that policy before deployment and will be required to comply with it.

Strategic Defense will conduct background screening on each proposed instructor and will not propose any person subject to a relevant international sanction, or known to be the subject of proceedings that would render the person unsuitable for the role.

Instructors will conduct themselves professionally at all times and will not engage in political activity, media comment, or the publication of any material relating to the program, NAF operations, personnel or facilities.

Strategic Defense will withdraw any instructor found to have breached these requirements and will provide a replacement in accordance with Section 17.

23. CONFIDENTIALITY AND INFORMATION OWNERSHIP

Information exchanged or accessed under this engagement will be protected under the applicable mutual non-disclosure agreement and handled in accordance with NAF security requirements.

NAF will retain ownership and control of its syllabi, procedures, standards, operational information, training documents, trainee records, evaluation results and qualification information.

Strategic Defense and its instructors may use NAF information and materials only for performing the contracted services. They may not copy, remove, retain or disclose such information or materials except as authorized by NAF and required for the engagement.

Personal data relating to NAF trainees will be recorded only within NAF systems, and will not be extracted, stored or transferred by Strategic Defense.

Access will be limited to personnel with an authorized need to know and subject to the applicable confidentiality and security obligations.

Instructors will be required to surrender all NAF materials and to complete the applicable NAF security clearance-out procedure on redeployment.

24. ASSUMPTIONS AND DEPENDENCIES

This Final Technical Proposal is based on the following assumptions:

- ▶ NAF will confirm the required instructor complement and agreed commencement date before mobilization.
- ▶ NAF will provide complete and accurate syllabi, procedures, standards, records and other information required for instructor tasking.
- ▶ NAF will provide suitable trainees and all aircraft, simulator, facilities, equipment and operational resources required for assigned training.
- ▶ Aircraft will be airworthy, serviceable, properly configured, maintained and released for flight under NAF procedures.
- ▶ NAF will provide, fit and maintain the personal flying and aircrew life-support equipment required for airborne duties.
- ▶ Required fuel, weapons, ammunition, airspace, ranges, mission-planning support and ground support will be available when the associated training is assigned.
- ▶ NAF will provide or facilitate the medical examination and clearance, currency, standardization, base-access, security, instructor and flight authorizations under its control.
- ▶ NAF will provide routine transportation on and around the deployment base, and accommodation and messing at an away base during any night stop under Section 6.1.
- ▶ NAF will provide the flight-safety, standardization and flight-operations governance framework within which the instructors will operate, and will exercise all instructional supervision.
- ▶ The liability allocation at Section 19.2 will be agreed before mobilization.

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- ▶ Training and administrative documentation will be in English unless otherwise agreed.
 - ▶ Operational tasking, maintenance, weather, resource availability and safety requirements may affect instructor utilization and training output.
 - ▶ Strategic Defense will not be responsible for delays or shortfalls caused by unavailable NAF-controlled resources, approvals or personnel.

25. CONDITIONS PRECEDENT TO MOBILIZATION

Mobilization will begin only after each of the following has been satisfied:

1. Execution of the implementation contract between Strategic Defense and NAF.
2. Receipt by Strategic Defense of the agreed mobilization payment under that contract.
3. Confirmation by NAF of the instructor complement and commencement date.
4. NAF acceptance of the proposed instructors under Section 7.
5. Agreement and confirmation of the liability allocation under Section 19.2.
6. Grant of the Nigerian visas, work permits and immigration documentation required for the accepted instructors.
7. Satisfaction of any applicable export-control, security-assistance, end-use or third-party training authorization under Section 21.
8. Confirmation by NAF of the accommodation, messing, base-access and transportation arrangements under Section 16.
9. Execution of the applicable mutual non-disclosure agreement.

Where a condition is satisfied in respect of some but not all proposed instructors, the parties may agree to mobilize those instructors for whom all conditions have been satisfied.

26. EXCLUSIONS

Unless expressly added through a written amendment, the engagement excludes:

- ▶ Operational, alert and combat sorties.
- ▶ Weapons employment other than as permitted under Section 12.
- ▶ Aircraft maintenance, engineering, airworthiness management and flight-release duties.
- ▶ Armament preparation, loading, maintenance and certification duties.
- ▶ Any resident Strategic Defense program management, chief instructor, standardization or safety management function at the deployment base.
- ▶ General staff work and unrelated administrative duties.

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- ▶ Instruction unrelated to the NAF A-29 IQT and MQT programs.
 - ▶ Development, replacement or independent modification of NAF syllabi, qualification standards or procedures.
 - ▶ Strategic Defense qualification or certification of NAF trainees.
 - ▶ Provision of aircraft, simulators, fuel, weapons, ammunition, airspace, ranges, classrooms, training equipment, personal flying and aircrew life-support equipment, or ground support.
 - ▶ Procurement, installation, upgrading, certification, operation or maintenance of simulation equipment.
 - ▶ Routine reassignment of instructors to another NAF base or facility.
 - ▶ Accommodation, travel or support for instructors' family members.
 - ▶ Any guaranteed number of trainees, IQT or MQT course completions, sorties, training events, qualifications or certifications.
 - ▶ Any service, equipment or deliverable not expressly identified in this Final Technical Proposal and the implementation contract.

27. COMMERCIAL BOUNDARY

This Final Technical Proposal contains no prices, fees, instructor numbers, instructor remuneration, payment schedule, allowances, per diem, insurance values or detailed personal engagement benefits.

The instructor complement, price, payment terms, taxes, proposal validity and other commercial conditions will be defined in the Final Commercial Proposal and implementation contract.

Technical acceptance of the services will be governed by Section 18. Commercial invoicing and payment will be governed exclusively by the Final Commercial Proposal and implementation contract.

ANNEX A - MONTHLY INSTRUCTOR ATTENDANCE AND ACTIVITY RECORD

Month: _____ Instructor: _____ Role: _____

Item	Days / Events	Remarks
Days available for duty		
Academic and ground-school periods delivered		
Simulator events conducted		
Airborne sorties conducted		
Checks and assessments conducted		
Authorized leave days taken		
Rest days		
NAF public holidays and stand-down days		
Days assessed as medically unfit for duty		
Approved absences		
Days unavailable for utilization due to NAF-controlled resources		Reason:
Training records and grading documentation completed		

■ Confirmed by designated NAF authority

Name: _____ Rank / Appointment: _____

Signature: _____ Date: _____

■ Submitted by Strategic Defense

Name: _____ Title: _____

Signature: _____ Date: _____

POINT OF CONTACT

StrategicDefense Security Systems Ltd.
4 Oguda Street, AMAC, Abuja, FCT, Nigeria
info@strategic-defence.com | +234 703 867 6619

For and on behalf of StrategicDefense Security Systems Ltd.

Name: _____ **Title:** _____

Signature: _____ **Date:** _____

End of Final Technical Proposal SDSS/A29/FTP/001 v6.3